

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 07/08/2026

Court Room Rules and Notices

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#	Case Name	Tentative
1	Yale – Trust; 30-2023-01359872	Motion to Compel
2	Shaw – Trust; 30-2024-01390550	Demurrer Amber Cherie Shaw and Cynthia Tracy Shaw (Respondents) demur to the Verified Amend Cross Petition (Petition) filed on 2/26/26 (ROA 479) by Petitioners Maureen Mary Shaw, Angela Shaw, Eastkings LLC, Eastsilvers LLC, Riverton Kiwi LLC, and Scarba Kiwi LLC (Petitioners). A demurrer can be used only to challenge defects that appear within the "four corners" of the pleading, which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) Courts "'treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. [Citation.] We also consider matters which may be judicially noticed." (<i>Id.</i>) On demurrer, a complaint must be liberally construed. (Code Civ. Proc., § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (<i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-967.) On demurrer, a complaint must be liberally construed. (Code Civ. Proc. § 452; <i>Stevens v. Superior Court</i> (1999)

75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.)

DEMURRER ON THE BASIS OF THE STATUTE OF LIMITATIONS

Code of Civil Procedure section 366.2 (Section 366.2) provides that, if a person against whom an action may be brought dies, "an action may be commenced within one year after the date of death, and the limitations period that would have been applicable does not apply." (Section 366.2.) The statute applies to all claims arising from the decedent's liability, whether based in contract, tort, or otherwise. Because this action arose when the decedent deprived the petitioner of her community property through threats of violence, Section 366.2 applies. The cause of action at issue does not fall under any of the exceptions of Section 366.2

However, the relation back doctrine applies. An amended pleading relates back to the original pleading if it: (1) rest on the same general facts, (2) involves the same injury; (3) refers to the same instrumentality. (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383.) The statute of limitations begins to run on the date on which the original complaint is filed even if the complaint is subsequently amended. Although an amended complaint supersedes the original complaint, the time of filing the original complaint is still the date of commencement of the action for purposes of the statute of limitations. (*Save Lafayette Trees v East Bay Reg'l Park Dist.* (2021) 66 Cal.App.5th 21, 35.)

Both the original petition and the amended petition were filed by the same petitioner and allege the same injury, i.e., being deprived of her share of community property, through the same deeds. The original petition was filed and accepted within the one-year deadline imposed by Section 366.2. Because the relation back doctrine applies, the claim is not time-barred and the demurrer on the basis of the statute of limitations is **OVERRULED.**

DEMURRER ON THE OF FAILURE TO ALLEGE

SUFFICIENT FACTS

“[A] plaintiff is required only to set forth the essential facts of his case with reasonable precision and with sufficient particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action. . . . The particularity required in pleading facts depends on the extent to which the defendant in fairness needs detailed information that can be conveniently provided by the plaintiff; less particularity is required where the defendant may be assumed to have knowledge of the facts equal to that possessed by the plaintiff. [Citation.]” . . . There is no need to require specificity in the pleadings because “modern discovery procedures necessarily affect the amount of detail that should be required in a pleading.” (Doheny Park Terrace HOA v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1098–1099.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872).

Under California’s pleading standards, the allegations of the first cause of action are sufficient to state a claim and the demurrer to that cause of action is

OVERRULED on the ground of failure to state sufficient facts.

DEMURRER ON THE BASIS OF UNCERTAINTY

Uncertainty is a disfavored grounds for demurrers because “ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) Demurrers for uncertainty should be “granted only if the pleadings is so incomprehensible that a defendant cannot reasonably respond.” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695, internal quotes omitted.) The claims asserted in the Petition are not incomprehensible and the demurrer on the ground of uncertainty is **OVERRULED**.

DEMURRER ON THE BASIS OF FAILURE TO PROPERLY SEGREGATE TRUST AND PROBATE MATTERS

		Respondents demur to the cross-petition on the ground it fails to “properly segregate Trust and Probate matters in violation of the Court’s Order.” They argue because the community properties are trust properties and not part of the probate estate, the claim for recovery of community property can only be brought as a trust claim. They also argue Family Code section 1101(b) permits an accounting in marital property disputes but does not provide grounds for an independent cause of action. Even presuming such arguments could support a demurrer, they do not stand at this pleading stage. Family Code section 1101(b) reads, in full: “A court may order an accounting of the property and obligations of the parties to a marriage and may determine the rights of ownership in, the beneficial enjoyment of, or access to, community property, and the classification of all property of the parties to a marriage.” It does not include a limitation on the type of action in which an accounting can be sought. Further, Family Code section 1101(c) authorizes a court to order “that the title of community property held in some other title form shall be reformed to reflect its community character.” As was the case with subsection (b), subsection (c) gives this court power to reform the title of the properties at issue in this proceeding. The accounting claim is sufficiently stated at this pleading stage and the demurrer on the ground that the petition fails to properly segregate trust and probate matters is OVERRULED. Petitioner is ordered to serve notice of ruling on this Demurrer.
6	Torres – Trust; 30-2025-01515898	Motion for Protective Order Petitioner Melanie Martinez’s Emergency Motion for Protective Order Prohibiting Dissipation of Trust Assets Pending Hearing on First Amended Petition (ROA 11) is DENIED.

This action arises out of the Mary L. Torres Living Trust (Trust). Petitioner is a daughter of the settlor of the Trust, Mary L. Torres (Decedent). Petitioner was named as a beneficiary in the original iteration of the Trust but was removed as a beneficiary in the Third Amendment. Petitioner alleges the Third Amendment was executed when Decedent lacked capacity and was the result of undue influence by Bridget Martinsen (Martinsen), also a daughter of Decedent. Based on her allegations, Petitioner filed the initiating petition seeking to invalidate the Third Amendment. The petition also alleges Elder Abuse and requests an order prohibiting Martinsen and Alexis T. Harris, a co-trustee of the Trust, from using Trust assets to defend against the claims. (Nathan Doorneweerd (Doorneweerd) is also a co-trustee of the Trust. Martinsen is not a trustee.)

By the motion before the court this day, Martinez seeks an order prohibiting Harris and Martinsen from “dissipating, distributing, or expending assets” of the Trust to defend this litigation pending a hearing on the petition.

A trust “constitutes a contract between the trustor and the trustee.” (*Key v. Tyler* (2019) 34 Cal.App.5th 505, 540.) “It is not the province of the court to alter a contract by construction or to make a new contract for the parties; its duty is confined to the interpretation of the one which they have made for themselves, and, in the absence of any ground for denying enforcement, to enforcing or giving effect to the contract as made, that is, to enforce or give effect to the contract as made without regard to its wisdom or folly, to the apparent unreasonableness of the terms, or to the fact that the rights of the parties are not carefully guarded, as the court cannot supply material stipulations or read into the contract words which it does not contain so as to change the meaning of words contained in the contract.” (*In re Estate of Bodger* (1955) 130 Cal.App.2d 416, 425.)

Here, the Third Amendment specifically allows the trustees to “defend, at the expense of the trust estate, any contest or other attack of any nature on this trust or any of its provisions, on the Settlor’s intent, on the Trustee, without regard to outcome or benefit to the trust.” Because the Trust specifically allows the trustees

		to use funds to defend against attacks on the Trust, the motion is DENIED as to use of Trust assets by the co-trustees Harris and Doorneweerd to defend Petitioner's attempt to invalidate the Third Amendment. The parties should be prepared to discuss, however, any possible use of Trust funds to defend Harris on the Elder Abuse claim. Respondents are ORDERED to give notice.
7	Koenig – Trust; 30-2024-01414937	Motion to Deem Vexatious Before the court is Trustee Tammie Harding's motion to declare Petitioner Krista Koenig (Koenig) a "vexatious litigant" under Code of Civil Procedure section 391. (ROA 418.) The motion also requests that the court order Koenig to furnish a security under Code of Civil Procedure section 391.1 and that the court grant a prefiling order against Koenig under Code of Civil Procedure section 391.7. The motion to declare Koenig a vexatious litigant and the requests for a prefiling order and an order requiring a security are all DENIED without prejudice. I. Request for Judicial Notice The court GRANTS Koenig's request for judicial notice as to requests 1-17. The request is granted only as to the existence of the identified documents but not for the truth of any matter asserted therein. (Evid. Code § 452 (d), 453; see <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482 [judicial notice cannot be taken of truth of matters asserted in court records].). The court also judicially notices ROAs 63, 121, 127, 132, 189, 213, 234, 260, 374, and 387 Minute Order 12/02/2025 on its own motion. (Evid. Code § 452(d).) II. Motion to Declare Koenig a Vexatious Litigant Code of Civil Procedure section 391(b)(3) defines a vexatious litigant as someone who "while acting in propria persona, repeatedly files unmeritorious motions,

pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.”

Trustee argues Koenig fits this definition by filing numerous motions and ex partes and propounding voluminous discovery including but not limited to the following: motion for order granting leave to file and record notice of pendency of action (ROA 63); motion for leave to file verified amended petition (ROA 121); ex parte application for order granting leave to file notice of lis pendens (ROA 127); motion to strike improper ex parte filings (ROA 189); ex parte for temporary restraining order and order to show cause (ROA 213); ex parte for order directing trustee to request 45-day postponement of foreclosure sale (ROA 260); motion to strike (ROA 374); ex parte for an order shortening time (ROA 371); and set one of Krista Koenig’s request for production of documents.

A court has discretion to determine what “repeatedly” and “unmeritorious” means for purposes of within section 391(b)(3). (*Morton v. Wagner* (2007) 156 Cal.App.4th 963, 971.) “While there is no bright-line rule as to what constitutes ‘repeatedly,’ most cases affirming the vexatious litigant designation involve situations where litigants have filed dozens of motions either during the pendency of action or relating to the same judgment.” (*Id.* at p. 972.) Further, the repeated motions “must be so devoid of merit and be so frivolous that they can be described as a flagrant abuse of the system [and] have no reasonable probability of success.” (*Ibid.*)

Koenig has filed at least eighteen petitions, supplements, motions and ex partes in this proceeding. Particularly, there was a string of ex partes and motions during the last four months of 2025 that stood out to the court. Although many of the ex partes were procedurally inadequate or had no exigency, they are not so devoid of merit to be a flagrant abuse of the system or to have had no reasonable probability of success. For example, the 09/08/2025 minute order denied two ex partes because of a failure to disclose similar prior ex partes as required and because of a lack of exigency. Some of the ex partes or motions may be considered devoid of merit, however no judicial officer

expressly found any of them to be frivolous. Additionally, the one set of discovery attached to this motion is insufficient to be deemed "unnecessary discovery." Based on the discovery record provided in connection with the motion, the court cannot deem Koenig vexatious.

The trustee's reply argues the totality of Koenig's actions amount to "other tactics that are frivolous or solely intended to cause unnecessary delay." However, Koenig's filings do not yet rise to the level of "numerous unsuccessful judicial challenges." (*Golen v. Allenby* (2010) 190 Cal.App.4th 616, 640.) Additionally, although the undisclosed related action may support a finding on the "other tactics" prong, that issue was only raised in reply and the general rule of motion practice is that new evidence in reply papers is not to be considered. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.)

The motion to deem Koenig a vexatious litigant is **DENIED**.

III. Issuance of Prefiling Order and Requirement of a Security

Trustee requests a prefiling order (Code of Civ. Proc., § 391.7) and an order requiring a security (Code of Civ. Proc., § 391.1(a)). Both orders apply only to a vexatious litigant. Because the court did not find Koenig to be a vexatious litigant, the requests are **DENIED**.

IV. Note of Caution

Although the court finds the conduct presented to the court does not yet meet the definition of a 391(b)(3) "vexatious litigant," Koenig is strongly cautioned that her conduct points towards some degree of vexatiousness.

The court is troubled by the string of ex partes and motions between late August and December 2025. Further, the ex partes and other motions appear to be supported by an unnecessary volume of declarations and memorandums of points and authorities. These filings are unusually litigious and tending towards a vexatious nature.

		Additionally, the previously unreported related case in Riverside County Superior Court causes concern. The fact that the present case and the Riverside case both involved title to the same property makes them related. (Cal. Rules of Court, Rule 3.300(a).) Koenig had a duty to serve and file a notice of related case no later than 15 days after Koenig learned of the existence of the case. (Cal. Rules of Court, Rules 3.300(b) and 3.300(e).) Although raised too late to be considered in connection with this motion, the separate proceeding could be considered in a future vexatious litigant motion. By this order, the Court in no way intends to discourage Koenig from utilizing the court's processes and makes no prediction as to how any issue in this proceeding may ultimately be adjudged or adjudicated. But Koenig is reminded she must participate in this proceeding appropriately and will be held to the same rules as other litigants before this court. (See <i>Wantuch v. Davis</i> (1995) 32 Cal.App.4th 786, 795.) The order is also made expressly without prejudice as to Trustee's right to file a subsequent motion to deem Koenig a vexatious litigant in this or another judicial proceeding in the event Koenig's conduct would support such a finding, whether alone or in addition to the conduct identified by trustee in this motion. The Trustee is directed to give notice.
9	Fung – Trust; 30-2026-01548357	Motion to Expunge Lis Pendens Respondent Michelle Fung's Motion to Expunge Lis Pendens (ROA 51) is DENIED. Pursuant to CCP §§ 405.22, 405.23, 405.30, 405.31, 405.34, and 405.38, Respondent Michelle Fung (Respondent) seeks an order expunging a lis pendens placed on property commonly known as 2602 W. Castor Street, Santa Ana, CA 92704 (Property) on the grounds Petitioners: (1) do not assert a real property claim against the Property and (2) cannot establish the probable validity of their claim.

A *lis pendens* must be expunged if: (1) the pleading on which the *lis pendens* is based does not contain a real property claim; or (2) the claimant cannot establish the probable validity of the real property claim(s) by a preponderance of the evidence. (Code of Civ. Proc., §§ 405.31 and 405.32.) The party opposing a motion to expunge has the burden of showing both the existence of a real property claim and the probable validity of that claim. (*Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647; Code of Civ. Proc., § 405.30.)

Real property claim. A “real property claim” is one which, if meritorious, would affect title to, or the right to possession of, specific real property; or the use of an easement identified in the pleading. (Code of Civ. Proc., § 405.4.) The allegations of the petition determine whether a “real property claim” is involved; no independent evidence is required. (*Urez Corp. v. Superior Court* (1987) 190 Cal.App.3d 1141, 1149.)

Because the petition seeks, in part, to remove the trustee (ROA 2 at 3:25-4:20) and the trustee holds title to a trust’s real property, the petition asserts a real property claim. “The trustee of a trust holds title to real property. Unlike a corporation, a trust is not a legal entity. Rather, a trust is a fiduciary *relationship* with respect to property. When property is held in trust, there is always a divided ownership of property, generally with the trustee holding legal title and the beneficiary holding equitable title. Trusts do not own property; trustees do.” (*Newell v. Superior Court* (2024) 107 Cal.App.5th 728, 736–737.) If Petitioners are successful on their claim, a new trustee would be designated and that new trustee would then hold title to the Property in his or her name as successor trustee. (*Id.* at p. 737.)

Probable validity of the claim. To overcome the motion to expunge, Petitioners must establish “it is more likely than not [they] will obtain a judgment” on their real property claim. (Code of Civ. Proc., § 405.3.) Petitioners’ showing must be by a preponderance of the evidence. (Code of Civ. Proc., § 405.32.) “‘Probable validity,’ with respect to a real property claim, means that it is more likely than not that the claimant will

		obtain a judgment against the defendant on the claim.” (Code of Civ. Proc., § 405.3). Petitioners have the burden of establishing they are more than likely than not to succeed on their request to remove the trustee for violating her duties as Trustee. The evidence offered by Petitioners in connection with their supplemental briefing is sufficient to establish the probable validity of that claim. The motion to expunge is DENIED. Petitioners are directed to give notice.
10	McElroy – Trust 30-2025-01478387	Motion to Consolidate Petitioner Kimberly Pierce’s Motion to Consolidate (ROA 29) is DENIED. As an initial matter, the motion is procedurally defective. The motion did not “[l]ist all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record” or “[c]ontain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first” as required by Rules of Court, rule 3.350(a)(1)(A) & (B). Further, a notice of motion to consolidate must be filed in each case sought to be consolidated. (CRC, Rule 3.350(a)(1)(C).) Moving on the merits of the motion, the court is not persuaded that consolidation of these actions is appropriate. “When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.” (Code of Civ. Proc., § 1048(a).) The granting or denial of the motion to consolidate rests in the sound discretion of the trial court, and will not be reversed except upon a clear showing of abuse of discretion. (<i>Todd-Stenberg v. Dalkon Shield Claimants Trust</i> (1996) 48 Cal. App. 4th 976, 978–79.)

		Here, the four proceedings involve different claims and the parties are not entirely duplicative. Further, the pleadings in three of the proceedings are not yet settled. Accordingly, the motion is DENIED. Sandra McElroy is directed to give notice.
11	McElroy – Other Probate 30-2024-01383747	Motion to Consolidate Petitioner Kimberly Pierce’s Motion to Consolidate (ROA 78) is DENIED. As an initial matter, the motion is procedurally defective. The motion did not “[l]ist all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record” or “[c]ontain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first” as required by Rules of Court, rule 3.350(a)(1)(A) & (B). Further, a notice of motion to consolidate must be filed in each case sought to be consolidated. (CRC, Rule 3.350(a)(1)(C).) Moving on the merits of the motion, the court is not persuaded that consolidation of these actions is appropriate. “When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.” (Code of Civ. Proc., § 1048(a).) The granting or denial of the motion to consolidate rests in the sound discretion of the trial court, and will not be reversed except upon a clear showing of abuse of discretion. (<i>Todd-Stenberg v. Dalkon Shield Claimants Trust</i> (1996) 48 Cal. App. 4th 976, 978–79.) Here, the four proceedings involve different claims and the parties are not entirely duplicative. Further, the

		pleadings in three of the proceedings are not yet settled. Accordingly, the motion is DENIED. Sandra McElroy is directed to give notice.
12	Taylor – Trust; 30-2022-01291239	Motion to Enforce Settlement Agreement